

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
SHATIEK ALLAH,

Plaintiff,

vs.

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICERS
FRANKIE LORA, JANAAL MILLER,
JOSE CAMACHO, TINA EVERETT
POLICE OFFICERS JOHN DOE NUMBERS 1-2, UNKNOWN AND
INTENDED TO BE OTHER NEW YORK CITY POLICE
OFFICERS INVOLVED IN THE OCCURRENCE
HEREIN,

Defendants.
-----X

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

★ OCT 27 2008 ★

BROOKLYN OFFICE
08 CV 08 4346

COMPLAINT

JURY TRIAL
DEMANDED

VITALIANO, J.

AZRACK, M.J.

Plaintiff SHATIEK ALLAH, by his attorney, Andrew A. Rowe Esq., complaining of the
defendants herein, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This is an action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. §§1983, 1985, 1986 and 1988, and of rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. Plaintiff SHATIEK ALLAH is an African-American man who was forty-five years old at the time of the incident. Plaintiff is a United States citizen. Plaintiff was deprived of his constitutional and common law rights when defendants POLICE OFFICER FRANKIE LORA, JANAAL MILLER, JOSE CAMACHO, TINA EVRETT AND JOHN DOES 1-2 AND INTENDED TO BE OTHER NEW YORK

CITY POLICE OFFICERS INVOLVED IN THE OCCURRENCE HEREIN (hereinafter referred to as the "individual police officer defendants"), falsely accused plaintiff of crimes that he did not commit, causing plaintiff to lose his liberty and become psychologically and physically injured.

JURISDICTION

2. This action is brought pursuant to Civil Rights Act, 42 U.S.C. §§1983, 1985, 1986 and 1988, and of rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§1331 and 1343 and the aforementioned statutory and constitutional provisions.
3. Plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. §1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that give rise to the federally based claims and causes of action.

VENUE

4. Venue is proper for the United States District Court for the Eastern District of New York pursuant to 28 U.S.C. §1391 (b) because the claims arose in this district.

PARTIES

5. Plaintiff SHATIEK ALLAH, was and still is a resident of the County of Kings, in the City and State of New York.
6. At all times relevant herein, defendant POLICE OFFICER FRANKIE LORA was a police officer of the New York City Police Department and he is believed to be

- OF NEW YORK
7. At all times relevant herein, defendant POLICE OFFICER JOSE CAMACHO was a police officer of the New York City Police Department and he is believed to be assigned to the 77th Precinct in the County of Kings, City and State of New York. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.
 8. At all times relevant herein, defendant POLICE OFFICER JANAAL MILLER was a police officer of the New York City Police Department and he is believed to be assigned to the 79th Precinct in the County of Kings, City and State of New York. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.
 9. At all times relevant herein, defendant POLICE OFFICER TINA EVERETT was a police officer of the New York City Police Department and he is believed to be assigned to the 79th Precinct in the County of Kings, City and State of New York. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.

10. At all times relevant herein, defendants POLICE OFFICERS JOHN DOE NUMBERS 1-2, UNKNOWN AND INTENDED TO BE OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN THE OCCURRENCE HEREIN were police officers of the New York City Police Department and they are believed to be assigned to the 79th Precinct in the County of Kings, City and State of New York. At all times relevant herein, they were acting in the capacity of agents, servants and employees of defendants THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.
11. At all times relevant herein, the individual police officer defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of defendant THE NEW YORK CITY POLICE DEPARTMENT and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of defendant THE NEW YORK CITY POLICE DEPARTMENT at all times relevant herein, with the power and authority vested in them as officers, agents and employees of defendant THE NEW YORK CITY POLICE DEPARTMENT and incidental to the lawful pursuit of their duties as officers, employees and agents of defendant THE NEW YORK CITY POLICE DEPARTMENT.
12. In the alternative, at all times relevant hereto, the individual police officer defendants were acting individually and they are also being sued herein in their individual capacities.

13. Defendant THE CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by defendant THE NEW YORK CITY POLICE DEPARTMENT.

STATEMENT OF FACTS

14. On or about September 14, 2007, at approximately 8:00 p.m., on 437 Quincy Avenue between Thompkins and Throop Avenues, in the County of Kings and the City and State of New York, plaintiff SHATIEK ALLAH, was sitting on the stoop outside of his cousins mother-in-law's house when he was approached by defendant POLICE OFFICER JANAAL MILLER and his partner POLICE OFFICER TINA EVEREET.
15. POLICE OFFICER JANAAL MILLER asked to see Plaintiff SHATIEK ALLAH's identification.
16. Plaintiff SHATIEK ALLAH presented to POLICE OFFICER JANAAL MILLER a valid New York state drivers license.
17. Plaintiff was searched by POLICE OFFICER JANAAL MILLER.
18. Plaintiff was handcuffed and arrested with out being told what he was being charged with.
19. Plaintiff was then brought to the Seventy-Ninth precinct in Brooklyn where he remained from Friday September 14th until Monday September 17th in spite of the fact

that the Brooklyn Criminal Court was open for business from 9:30am to 1:00am on Saturday September 15th and Sunday September 16th.

20. Plaintiff SHATIEK ALLAH was finally brought to 120 Schermerhorn Street the Criminal Court building on Monday September 17th at approximately 9:00am. Where he was uncuffed and told to go home with out seeing the judge. No explanation was given for his four day detention.
21. As a result of the defendants' above-mentioned conduct, plaintiff, suffered a violation of his due process and other Federal and state constitutional rights, loss of reputation and extreme emotional, mental and psychological anguish, including, but not limited to, loss of appetite, loss of sleep, depression, humiliation, anxiety, irritability, nervousness, discomfort and impairment of enjoyment of life, performance of daily activities and loss of benefits and/or wages.
22. The above-mentioned acts were all conducted in violation of plaintiff's constitutional rights and were perpetrated by the defendants under color of law. Plaintiff alleges that defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT are liable for the false arrest of plaintiff under a theory of Respondeat Superior. This is because, among other reasons, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT have tolerated and permitted a pattern of illegal actions against persons, and have failed to maintain a proper system for reviewing these violations by police officers. As a result, New York City police officers are encouraged to believe that they can violate the rights of persons, particularly, African-American males like plaintiff with impunity.

FIRST CAUSE OF ACTION
Violation of Plaintiff's Federal Constitutional Rights

27. Plaintiff SHATIEK ALLAH repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 26 with the same force and effect as if more fully set forth at length herein.

28. The defendants' above-mentioned assault, battery and arrest of plaintiff by excessive physical force was unlawful, an abuse of power, unreasonable and without due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

29. As a direct and proximate result of the above-mentioned unlawful and malicious acts committed by the individual police officer defendants, which were all committed under color of their authority as police officers, and while acting within that capacity, plaintiff suffered physical harm, deprivation of his liberty and emotional damage, all of which is in violation of his rights under the Constitution and laws of the United States, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution and 42 U.S.C. §§1983, 1985, 1986 and 1988.

30. As a further result of the above-mentioned unlawful and malicious acts committed by the individual police officer defendants, plaintiff was deprived of his rights and immunities secured by the Constitution and laws of the State of New York including, but not limited to, his rights to be secure in his person, to be free from unreasonable search and seizure and punishment without due process, and to equal protection of the laws.

31. By assaulting and battering plaintiff and by subjecting plaintiff to an arrest by excessive physical force, the defendants directly violated the rules and regulations of the New York City Police Department.

32. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00).

SECOND CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

33. Plaintiff SHATIEK ALLAH repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individual police officer defendants who were unfit for the performance of police duties on April 23, 2004, at the above-mentioned location.

35. The failure of the Mayor of the City of New York and the Police Commissioner of the New York City Police Department to adequately hire, retain, train, supervise, discipline, or in any other way control the behavior of the individual police officer defendants in the exercise of their police functions, and their failure to enforce the laws of the State of New York and the regulations of the New York City Police Department is evidence of the reckless disregard for the rights of the public, including plaintiff, and exhibited a lack of degree of due care which prudent and reasonable individuals would show in executing the duties of the Mayor and Police Commissioner.

36. Such conduct was carried out willfully, wantonly, maliciously and with reckless disregard

THIRD CAUSE OF ACTION
Discrimination on the Basis of Race

39. Plaintiff SHATIEK ALLAH repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

39. By their conduct as set forth above, the defendants demonstrated that they were motivated in their unlawful actions by reasons of racial discrimination against plaintiff, an African-American man, in violation of the New York Human Rights Law and the New York Executive Law, as well as under the laws of the Constitution of the United States, in particular the First, Fourth and Fourteenth Amendments, and her rights under the Constitution and other laws of the State of New York.

40. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00).

FOURTH CAUSE OF ACTION

False Arrest

41. Plaintiffs SHATIEK ALLAH repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The above-mentioned acts and conduct committed by the defendants constituted false arrest without cause or justification and defendants violated plaintiffs' rights under the Constitution and laws of the State of New York.

43. The defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of such confinement. In addition, plaintiffs did not consent to the confinement and such confinement was not otherwise privileged.

44. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.

45. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

46. That by reason of the foregoing, plaintiff suffered serious physical and/or emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00) as to each plaintiff.

FIFTH CAUSE OF ACTION
False Imprisonment

47. Plaintiffs SHATIEK ALLAH repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The above-mentioned acts and conduct committed by the defendants constituted false imprisonment and defendants violated plaintiffs' rights under the Constitution and laws of the State of New York.

49. The defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of such confinement. In addition, plaintiffs did not consent to the confinement and such confinement was not otherwise privileged.

50. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.

51. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

52. That by reason of the foregoing, plaintiffs suffered serious physical and/or emotional injuries all to their damage in the sum of Five Hundred Thousand Dollars (\$500,000.00) as to each plaintiff.

JURY DEMAND

53. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff demands the following relief jointly and severally against all defendants as follows:

(54) Compensatory and punitive damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS;

(55) On the FIFTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS;

(56) That plaintiff recovers the cost of the suit herein, including reasonable attorneys fees, pursuant to 42 U.S.C. §1988; and

(57) That plaintiff has such other and further relief as this Court shall deem just On the FIRST CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS;

(58) On the SECOND CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS;

(59) On the THIRD CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS;

(60) On the FOURTH CAUSE OF ACTION against defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT and proper.

Dated: October 14, 2008
Brooklyn, New York



ANDREW A. ROWE, ESQ. (AR 3581)
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Plaintiffs' Attorney
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Brooklyn, New York 11201

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

SHATIB ALI, AKA,

Plaintiff,

vs.

THE CITY OF NEW YORK, AKA,
CITY POLICE DEPARTMENT,
FRANK L LORA, JAMES
JOSE CAMACHO, TINA
POLICE OFFICERS, ET AL,
INTENDED TO BE OFFICERS
OFFICERS INVOLVED
HEREIN,

Defendant.

Phone: 212-312-3400

To: Honorable: